

22TRCV00231 22TRCV00231

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-13

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Case Number: 22TRCV00231 Hearing Date: August 13, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

PACIFIC
COAST CO., LTD. d/b/a BRINCFI,

Plaintiff,

Case No.:

22TRCV00231

vs.

[Tentative]
Granted

DANIEL
CHOI, and DOES 1-20, inclusive,

Defendants.

Hearing

Date: August

13, 2026

Moving Parties: Defendant Daniel Choi

Responding

Party: N/A

HEARING: Motion for Summary

Judgment

The Court considered the moving papers.

RULING

The Court grants the Motion for Summary Judgment.

BACKGROUND

On March 28, 2022,

Plaintiff Pacific

Coast Co. Ltd. d/b/a Brincfi filed the Complaint against Daniel Choi, alleging causes of action for conversion, intentional fraud, breach of contract, breach of the covenant of good faith and fair dealing, and unjust enrichment.

On June 10, 2022, Plaintiff filed the First Amended Complaint.

On January 20, 2026, Defendant filed the Motion for Summary Judgment.

No opposition has been filed.

LEGAL STANDARD

The function of a motion for summary judgment

or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each cause of action, as framed by the complaint, the defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2); see also Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

DISCUSSION

Defendant moves for summary judgment on the FAC.

Token Ownership

Defendant moves for

summary judgment on the ground that every cause of action in Plaintiff's First Amended Complaint depends on Plaintiff's ownership of the subject tokens, and that Plaintiff cannot make the necessary showing of ownership. Defendant contends that Plaintiff's verified discovery responses abandoned any possession-based theory and that its person most knowledgeable admitted the company did not own the tokens at the time of the alleged theft. Defendant characterizes Plaintiff's later claim program as a settlement offer letting the true token owners take ten percent of value in exchange for waiving claims against Plaintiff, not a transfer of ownership.

Defendant further

argues that Plaintiff neither pleaded nor can prove an assignment. A plaintiff cannot defeat summary judgment on a theory absent from the operative pleading, and the First Amended Complaint never mentions an assignment. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.) In any event, an assignment requires a clear manifestation of intent to transfer the specific right, and the claim program document shows only a settlement offer. (*California Ins. Guarantee Assn. v. Workers' Comp. Appeals Bd.* (2012) 203 Cal.App.4th 1328, 1335.)

No opposition has
been filed.

Here, Defendant has

shown that Plaintiff did not own the tokens at the time of alleged theft. (UMF 3.) Thus, as all causes of action are based on Plaintiff's theft of the tokens, the Court finds that Defendant has met his initial burden.

As Plaintiff has

not filed an opposition, Plaintiff has failed to show any triable issues of material fact.

Therefore, the

Court grants the Motion for Summary Judgment.